

Multiple Choice (10 marks)

1. Why is it important to separate the concept of punishment from its justification?
 - (a) Because the concept of punishment has evolved over time.
 - (b) Because punishment can be justified in multiple ways.
 - (c) Because any definition of punishment should be value-neutral.
 - (d) Because the practice of punishment is separate from its justification.
 - (e) Because the justification of punishment varies across cultures.
2. In which instance would a state, under the enabling clause of the Fourteenth Amendment, be most able to regulate?
 - (a) A federal official from discriminating against a person based on race.
 - (b) A federal official from discriminating against a person based on gender.
 - (c) A federal official from discriminating against a person based on nationality.
 - (d) A private company from discriminating against a person based on nationality.
 - (e) A private individual from discriminating against a person based on race.
3. The _____ School of jurisprudence postulates that the law is based on what is "correct."
 - (a) Legal Pragmatism
 - (b) Legal Formalism
 - (c) Comparative
 - (d) Analytical
 - (e) Sociological
4. Which of the following will not terminate a contract by operation of law?
 - (a) Change in law that makes contract impossible
 - (b) Bankruptcy of one party
 - (c) Expiration of the contract term
 - (d) Partial performance
 - (e) Supervening illegality
5. Catharine MacKinnon argues that since men dominate women, the question is ultimately one of power. Which proposition below is the most inconsistent with this argument?

- (a) The power dynamic is determined by individual strength and not gender.
- (b) The idea of 'woman' needs to be redefined.
- (c) Women inherently possess more power than men.
- (d) Gender-based inequality is a myth.
- (e) Men and women share equal power in society.

True / False (10 marks)

Answer True or False

- 6. True or False: The idea of 'natural law' first emerged in Greek thinking, influencing later legal and philosophical frameworks.
- 7. True or False: Savigny's notion of Volksgeist suggests that law is primarily a tool used by the ruling class for societal oppression.
- 8. True or False: An 'armed attack' under Article 51 of the UN Charter encompasses all high-intensity instances of armed force.
- 9. True or False: Maine's aphorism that 'the movement of progressive societies has hitherto been a movement from Status to Contract' is often misinterpreted as a prediction.
- 10. True or False: Llewellyn's distinction between grand and formal styles of legal reasoning is misleading when it oversimplifies judicial roles.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

- 11. Discuss the Doctrine of Worthier Title and analyze its implications on property law, particularly focusing on how it transforms an invalid remainder in heirs into a reversion for the grantor.
- 12. Discuss the implications of Maine's aphorism that 'the movement of progressive societies has hitherto been a movement from Status to Contract' and analyze its common misinterpretation as a prediction.

End of Paper